United Nations Educational, Scientific and Cultural Organization

Intangible Cultural Heritage

Ethics for safeguarding intangible cultural heritage

Unit 38 PowerPoint presentation

UNESCO
Intangible Cultural Heritage Section

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

In this presentation…

- What are ethics
- Ethics and the 2003 Convention
- Ethical approaches to safeguarding
- Possible techniques in addressing ethical conflicts

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I. Introduction to ethics

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Discussion:

What do ethics mean to you?

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What are ethics?

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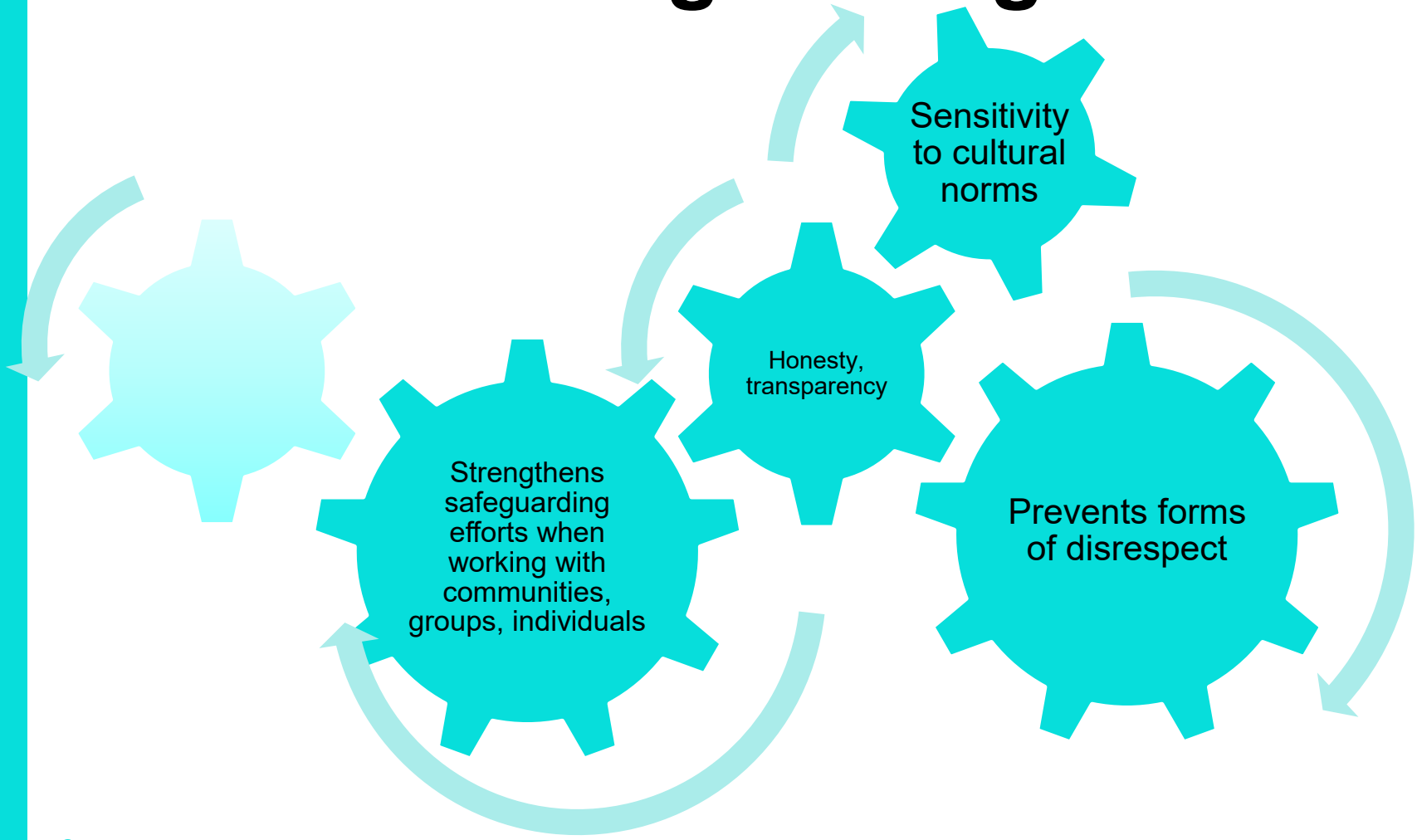
Why are ethics important in safeguarding ICH



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Potentially unethical approaches

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Group Discussion:

Share from your own experience if you've ever encountered an ethical issue, conflict or dilemma in your line of work. You can also speak about an example you have heard of or read about somewhere else.

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II. Ethics in the Convention

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History of the Ethical Principles for Safeguarding ICH

2012

Committee called on Secretariat to initiate work on ethics

2015

Secretariat organized expert meeting on elaborating a code of ethics for ICH

2015

Committee endorsed 12 Ethical Principles for Safeguarding ICH now included in the Basic Texts of the Convention

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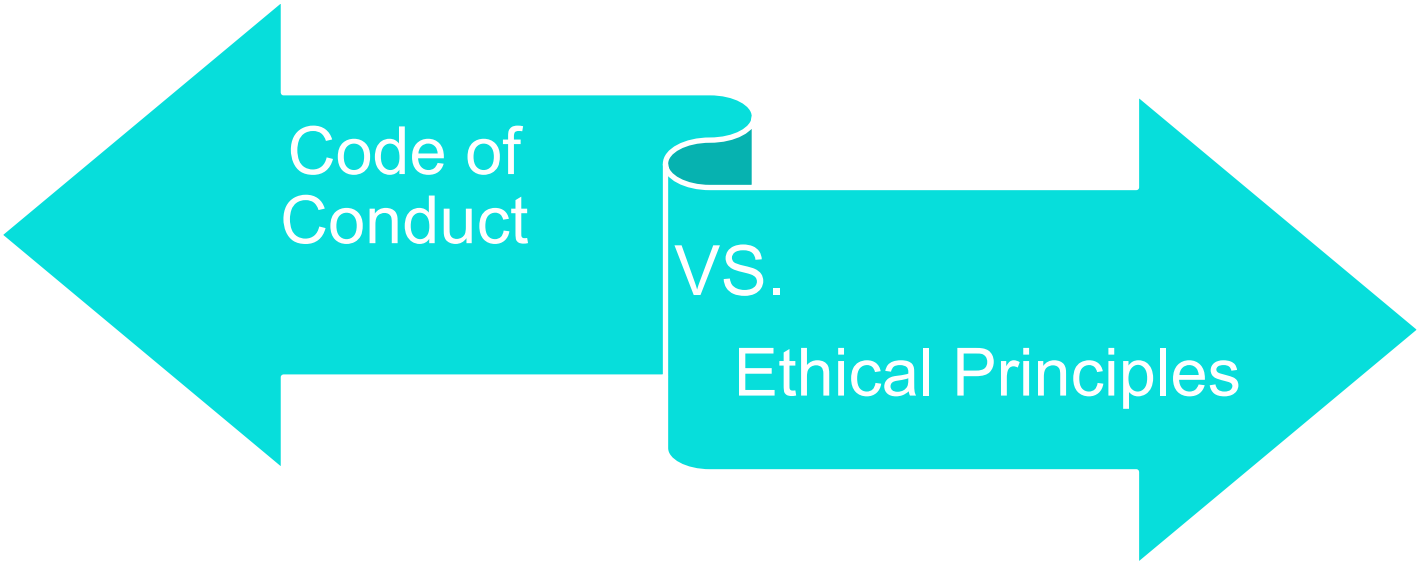
Why ethical <u>principles</u>?



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What is an ethical principle?

An '**ethical principle**' is a general standard or norm that helps establish baseline expectations for respectful and responsible behaviour…

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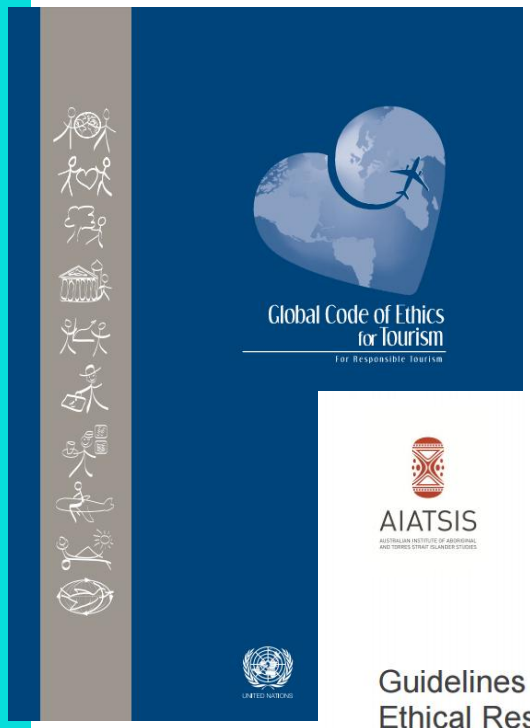
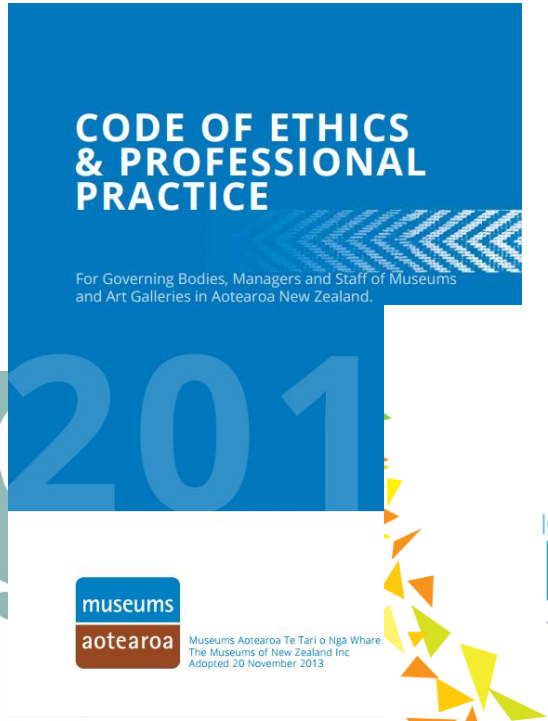
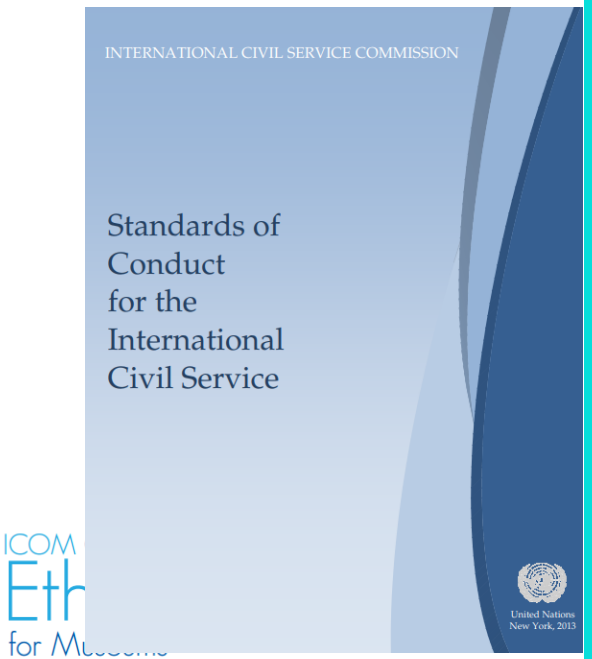
Examples of codes of ethics

- <u>Exercise:</u>

Examining and adapting a code of conduct







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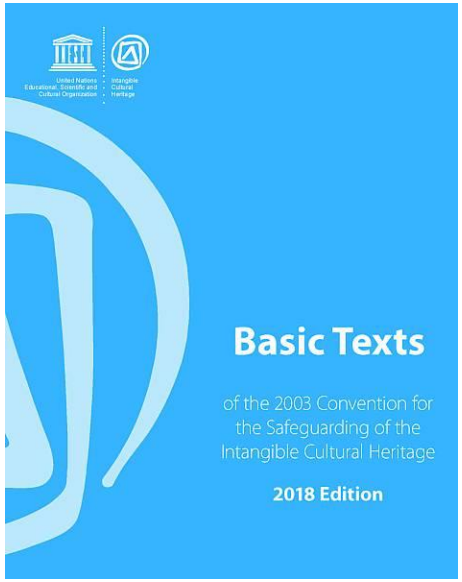
What does the Convention say?

No specific guidelines
BUT ethical considerations present in Operational Directives



Para 93	• for NGOs to “abide by applicable ethical standards”
Para 103	• for State Parties to “develop and adopt one’s own code of ethics to ensure appropriate ways of raising awareness…”
Para 171c	• in creating “plans, policies and programmes respecting ethical considerations…”

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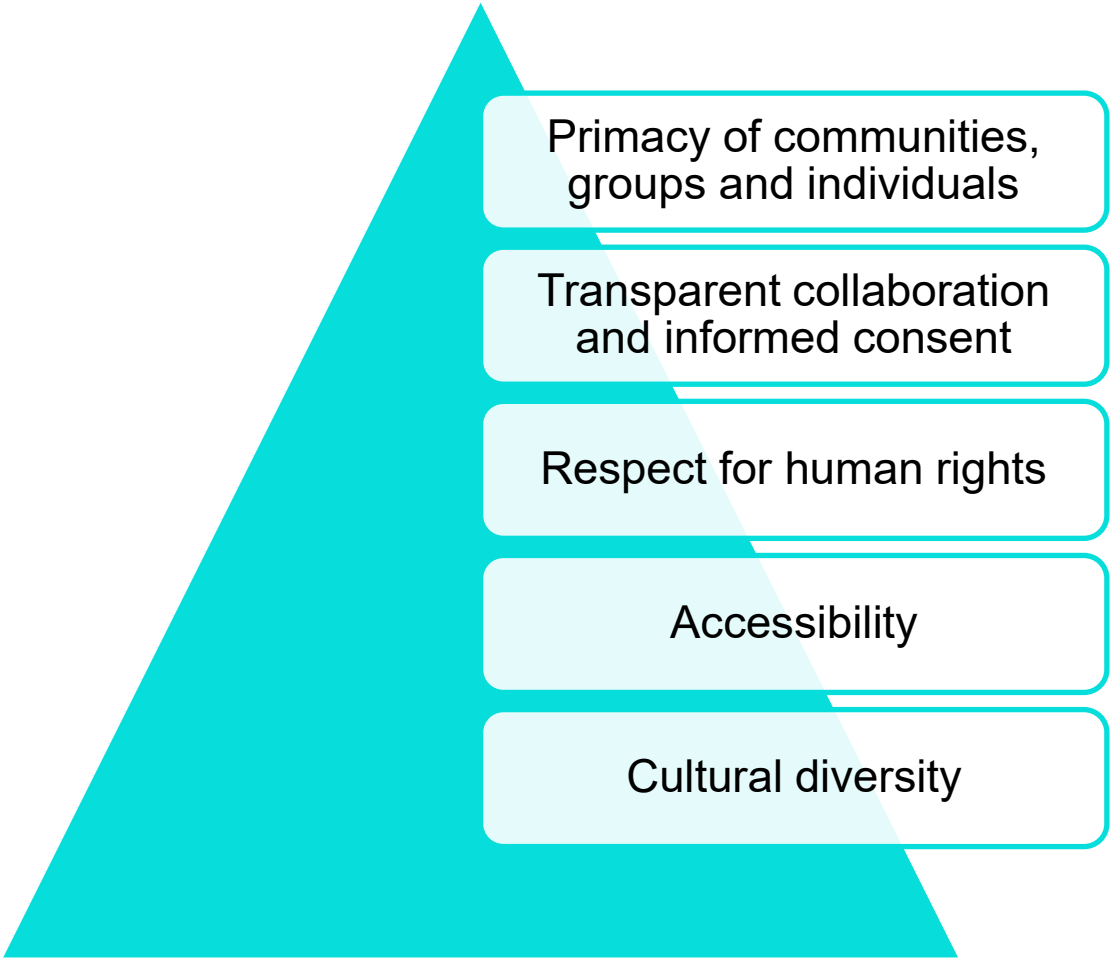
Convention's core values

- What the 12 ethical principles were founded on



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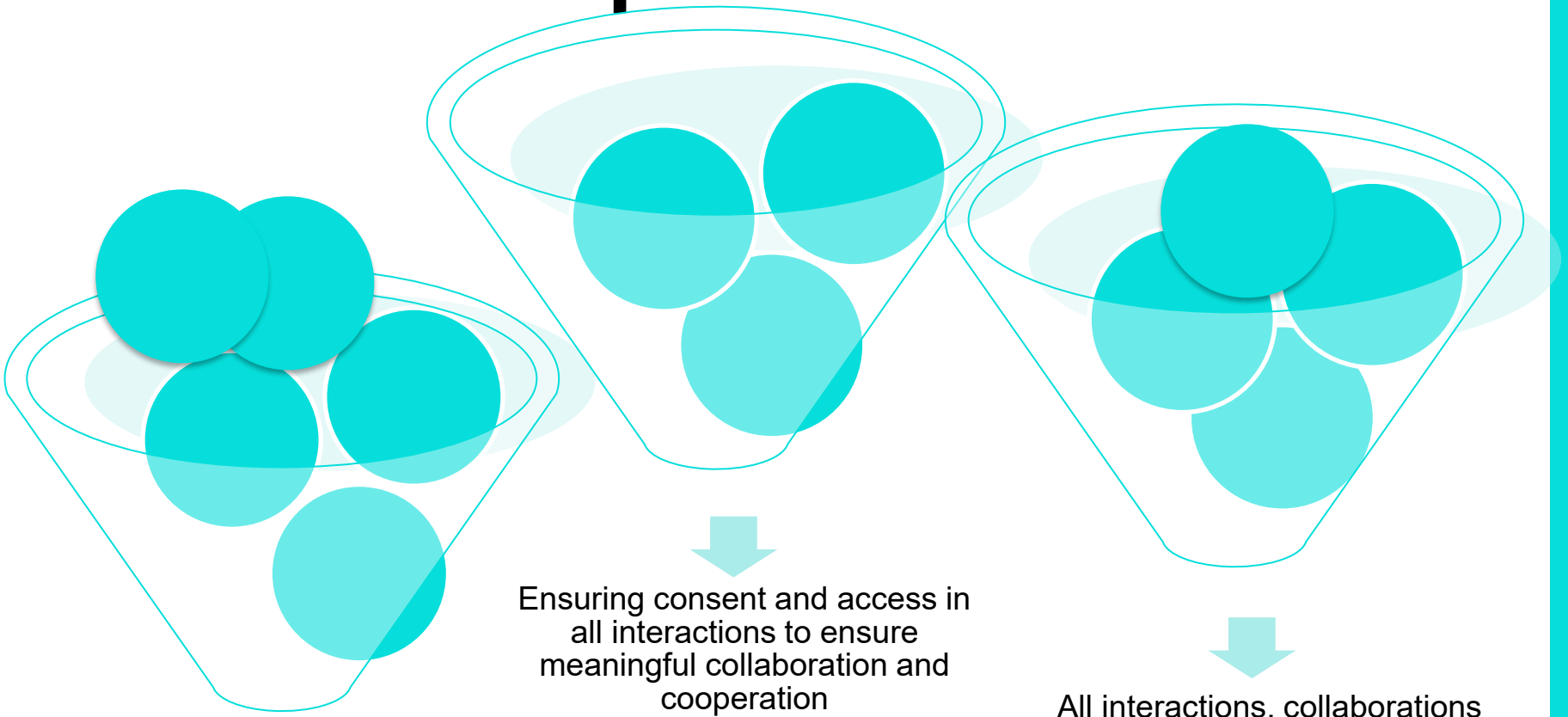
Exploring the 12 Ethical Principles



Recognizing and respecting the rights and diversity of communities, groups and, where applicable, individuals

Ensuring consent and access in all interactions to ensure meaningful collaboration and cooperation

All interactions, collaborations and activities should benefit and have positive impact for the community, group or individual in question

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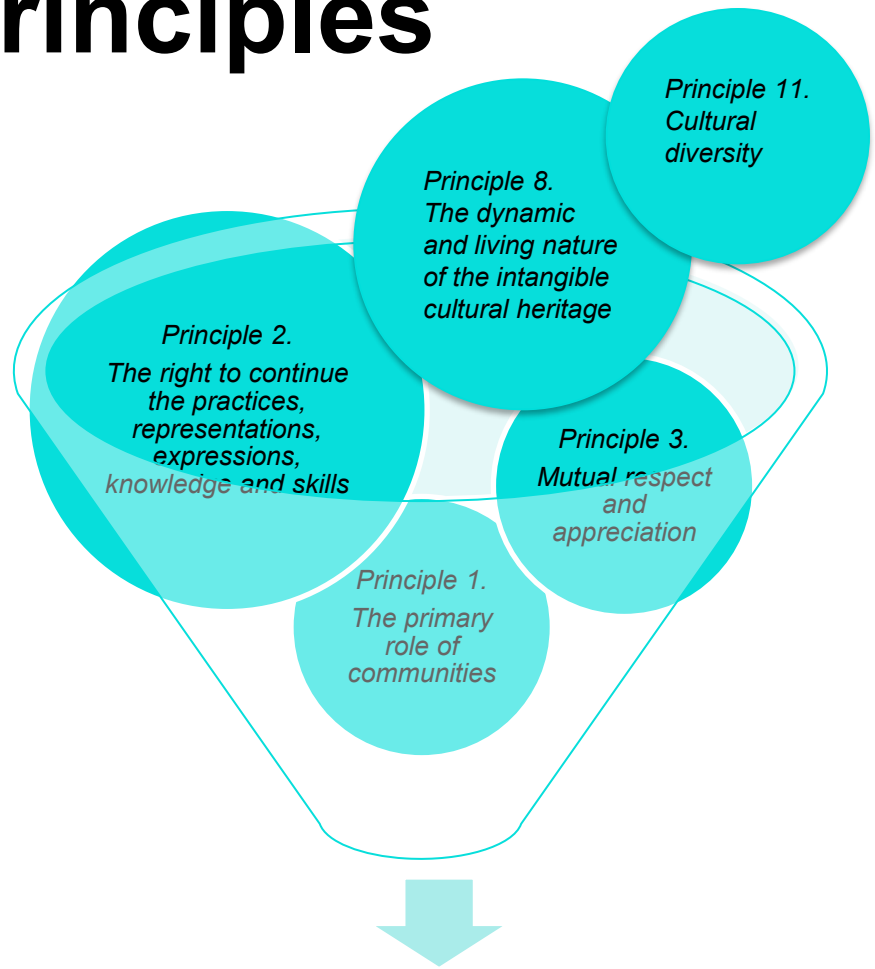
Exploring the 12 Ethical Principles



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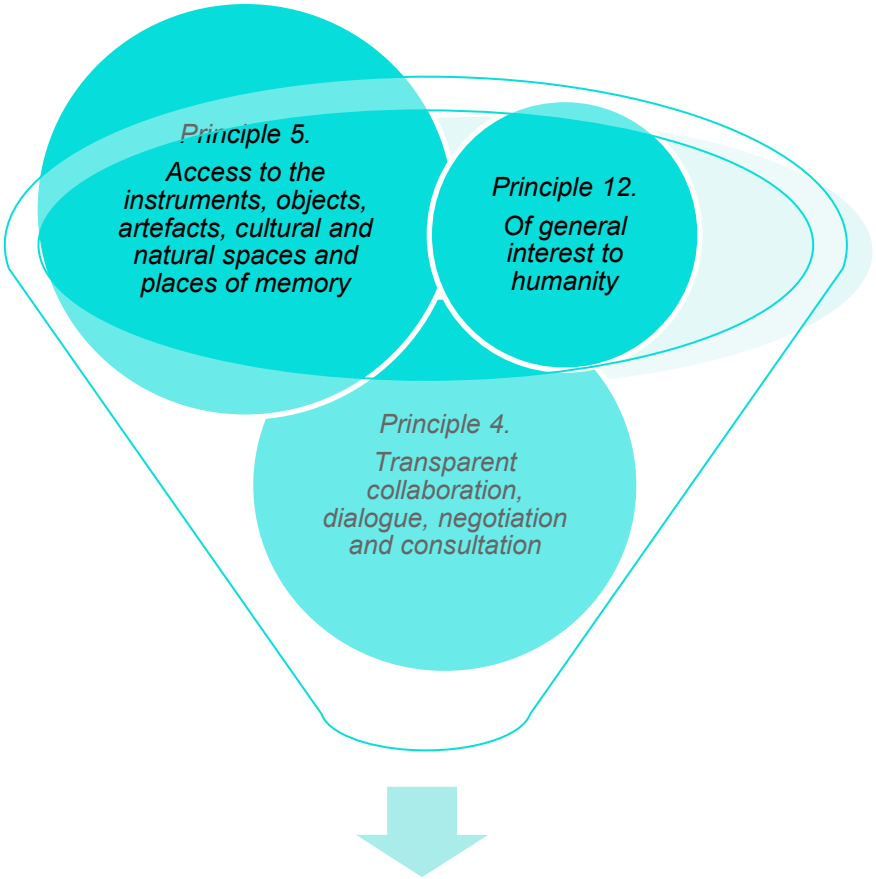

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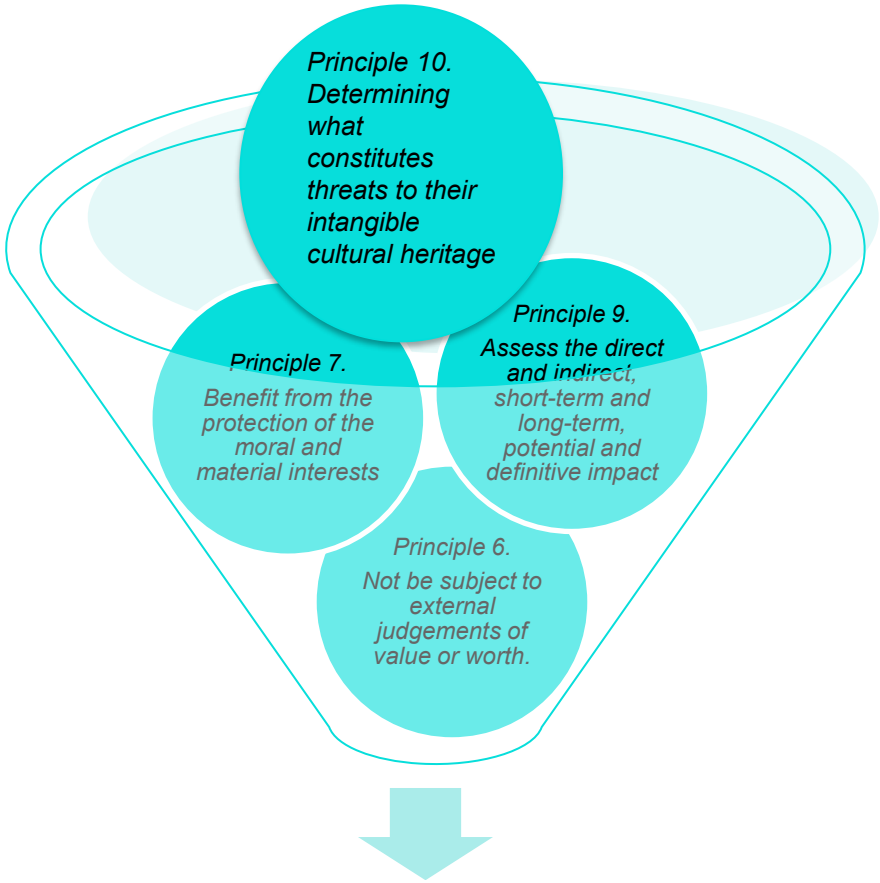
Exploring the 12 Ethical Principles



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Addressing ethical issues

<u>Acknowledgement of the ethical issue</u>

- Identifying and recognizing the ethical issue
- Allows for better decision making on possible courses of action that can be taken
- In some cases, may be the only possible thing to do

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Addressing ethical issues

<u>In collaboration and partnership</u>

- Different perceptions, expectations, agendas and interests
- Power differentials between stakeholders

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Addressing ethical issues

<u>In determining community representation</u>

- Determining who speaks / represents for the community
- Representation for divided / multiple communities

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Addressing ethical issues

<u>In ownership and dissemination of data</u>

•Defining data ownership and publication rights

•Access and dissemination of information

•Issues around intellectual property rights

•Principles of free, prior informed consent; access; benefit sharing

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Collaborative approaches to ethical safeguarding in ICH

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III. Case studies

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Case study: ICBG Maya Bioprospecting

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Case study: Secret tapestry

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Case Study: Canning Stock Route

Canning Stock Route Project

WARNING:
THIS CASE STUDY CONTAINS IMAGES, NAMES AND STORIES OF ABORIGINAL PEOPLE WHO HAVE PASSED AWAY.

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Role Play exercise

Some rules:

Stay in character throughout the game, acting and speaking from that position;

Defend your convictions and choices vis-à-vis others, find allies; but, also be willing to compromise and keep the general interest in mind; and

Follow the guidance provided by the chair/facilitator (in or out of role).

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Guiding questions for discussion:

- Have the rights of the communities affected been respected and recognised?
- Are there mechanisms in place for transparent consent and clear collaboration parameters set out?
- Have risks / threats to intangible heritage been identified with communities, groups concerned?
- Are communities, groups or individuals fairly compensated, or any potential risks / threats to their intangible heritage been identified with communities, and mitigated?

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